

SENATE No. 392

The Commonwealth of Massachusetts

PRESENTED BY:

Jason M. Lewis

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to food literacy.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	
<i>Jason M. Lewis</i>	<i>Fifth Middlesex</i>	
<i>Joanne M. Comerford</i>	<i>Hampshire, Franklin and Worcester</i>	<i>1/23/2025</i>
<i>Sal N. DiDomenico</i>	<i>Middlesex and Suffolk</i>	<i>2/3/2025</i>
<i>Jacob R. Oliveira</i>	<i>Hampden, Hampshire and Worcester</i>	<i>2/7/2025</i>
<i>Bruce E. Tarr</i>	<i>First Essex and Middlesex</i>	<i>2/27/2025</i>
<i>Dylan A. Fernandes</i>	<i>Plymouth and Barnstable</i>	<i>3/11/2025</i>
<i>Julian Cyr</i>	<i>Cape and Islands</i>	<i>3/28/2025</i>

SENATE No. 392

By Mr. Lewis, a petition (accompanied by bill, Senate, No. 392) of Jason M. Lewis, Joanne M. Comerford, Sal N. DiDomenico, Jacob R. Oliveira and others for legislation relative to food literacy. Education.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE SENATE, NO. 2588 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to food literacy.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Chapter 10 of the General Laws, as appearing in the 2022 Official Edition,
2 is hereby amended by inserting after section 35SSS the following section:

3 Section 35TTT. There shall be established and set up on the books of the commonwealth
4 a separate fund to be known as the Food Literacy Trust Fund. The fund may receive money
5 from: any appropriations authorized by the general court specifically designated to be credited to
6 the fund; gifts, grants and donations from public or private sources; federal reimbursements and
7 grants-in-aid; and any interest earned from the fund. Monies may be expended by the department
8 of elementary and secondary education to encourage and facilitate food literacy programs in
9 school districts, charter schools, approved private day or residential schools, or collaborative
10 schools.

11 No expenditure from the fund shall cause the fund to be in deficiency at the close of the
12 fiscal year. The fund shall be an expendable trust fund and shall not be subject to appropriation
13 or allotment. The state treasurer shall be the custodian of the fund and shall receive, deposit and
14 invest all money transmitted under this section to ensure the highest interest rate available
15 consistent with the safety of the fund. The books and records of the fund shall be subject to an
16 annual audit by the state auditor. The commissioner of elementary and secondary education shall
17 report annually to the house and senate committees on ways and means and the joint committee
18 on education on income received into the fund and sources of that income, any expenditure from
19 the fund and the purpose of that expenditure and the fund's balance. Money in the fund at the
20 end of the fiscal year shall not revert to the General Fund and shall be available for expenditure
21 in the subsequent year and shall not be subject to section 5C of chapter 29.

22 SECTION 2. The third paragraph section 1D of chapter 69 of the General Laws, as so
23 appearing, is hereby amended by inserting after the words "consumer skills," in line 38, the
24 following words:-

25 "food literacy,"

26 SECTION 3. Chapter 69 of the General Laws, as so appearing, is hereby amended by
27 inserting after section 1T the following section:

28 Section 1U. (a) Food literacy standards established pursuant to section 1D shall promote
29 an understanding of food systems including, but not limited to: (i) nutrition and the impact of
30 diet on personal health; (ii) culinary skills and menu planning; (iii) food production, including
31 farming, fishing, and processing; (iv) the connections between the food system and the
32 environment; (v) hunger, its causes and efforts to alleviate it; (vi) racial and other inequities in

access to food and jobs in the food system; (vii) food justice; (viii) cultural connections to food; (ix) local food producers; and (x) careers in the food system including in the fields of farming, fishing, processing, engineering, transportation, public health, and hunger alleviation.

(b) A school district, charter school, approved private day or residential school or collaborative school may incorporate the food literacy standards established pursuant to section 1D and subsection (a) into existing curriculum including, but not limited to, mathematics, science, or history and social sciences.

(c) The department shall make resources, including high quality lessons and curricula, available to school districts, charter schools, approved private day or residential schools and collaborative schools to assist in the selection of materials and curriculum on food literacy. The department shall identify and offer information on resources for professional development activities and instruction on food literacy. The department may consult with private or non-profit experts in the fields of nutrition, agriculture, food systems, food security, or other related fields.

(d) The department may expend funds from the Food Literacy Trust Fund established pursuant to section 35TTT of chapter 10, to implement this section.

(e) There shall annually be a review by the department relative to the implementation of food literacy standards, including a study of food literacy programs offered in the commonwealth to students in kindergarten through grade 12. The commissioner shall consult with the office of the state treasurer to, subject to appropriation, convene a working group consisting of educators experienced in teaching curriculum related to food literacy and any individuals or organizations the department deems relevant with expertise in food systems, including, but not limited to, nutrition, farming, fishing, culinary arts, food justice and food career opportunities. The review

55 shall include a report on best practices and recommended improvements to food literacy
56 standards. The report shall be submitted to the clerks of the house of representatives and the
57 senate and the joint committee on education.